



File No.: EXP202312106

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On September 12, 2023, a complaint was filed with entry registration number REGAGE23e00060864908 before the Spanish Agency for Data Protection against A.A.A. (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant states that they are a victim of a case of sextortion that has been reported to the Civil Guard. They assert that someone has created an Instagram account ("***ACCOUNT.1") that uses a semi-nude image of them as a profile picture, extracted from a recording of a sexual call they had with the Instagram user "***USER.1". They add that despite having reported the account "***ACCOUNT.1" that impersonates their identity to Instagram, the provider has not removed it.

In their complaint, they indicate that the events took place on September 10, 2023.

With their complaint, they provide the following documentation:

- Copy of the police report where the mentioned facts are recorded. Furthermore, the complainant states that they made a payment of (...)€ through a platform called "Sendwave", which was received by A.A.A. in the country of Côte d'Ivoire, and that they contacted the reported person through the phone number ***PHONE.1, whose prefix is from the country of Côte d'Ivoire.
- Screenshot of the profile "***ACCOUNT.1", which shows the previously mentioned profile picture.

SECOND: On September 12, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

A) On September 12, 2023, this Agency obtained the following evidence:

1. Screenshot of the reported Instagram profile "***ACCOUNT.1", located at the url ***URL.1, which shows the previously mentioned profile picture.
2. Screenshot corresponding to the Instagram profile "***USER.1", located at the url ***URL.2, which is not available.

B) On September 22, 2023, this Agency obtained the following evidence:

1. Screenshot corresponding to the reported Instagram profile ***URL.1, confirming that this profile is not available.
2. Screenshot corresponding to the query of the url ***URL.3, which, as stated in the evidence screenshot by this Agency, corresponds to the direct link to the profile picture used in the user "***ACCOUNT.1". No image is recorded as a result of the query of this url.

C) On September 13, 2023, META PLATFORMS IRELAND LIMITED was ordered to remove the content located at the urls:

***URL.1

***URL.3

D) As a result of the information request made by the inspection, on February 9, 2024, META PLATFORMS IRELAND LIMITED sent the following information and statements to this agency:

1. That the reported Instagram profile ***URL.1 is located outside the European region and also not in Spain and redirects us to ask META PLATFORMS INC.

E) As a result of the information request made by the inspection, on March 8, 2024, META PLATFORMS IRELAND LIMITED sent the following information and statements to this agency:

1. It provides the IP addresses of the login action on the INSTAGRAM account "***USER.1" on certain

dates and times, being the following:

(...)

2023-09-25 13:52:55 UTC

(...)

2023-09-09 10:25:03 UTC

(...)

2023-09-09 10:14:05 UTC

(...)

2023-09-08 19:11:55 UTC

(...)

2023-09-06 21:36:48 UTC

(...)

2023-09-02 14:46:58 UTC

(...)

2023-09-01 22:53:00 UTC

(...)

2023-09-01 18:15:50 UTC

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F) On 08/03/2024, it is verified that all the previous IP addresses are located in Ivory Coast according to the whois service <http://whois.domaintools.com/>. In light of the investigative actions carried out, the Inspection Services of the AEPD conclude the following:

The content has been removed.

The complainant provides, in the police report attached to the complaint, the name and surname of the person who received the money corresponding to the sextortion and their supposed location, which is Ivory Coast. META responds that the reported profile ***URL.1 is located outside the European region and redirects us to inquire with META PLATFORMS INC. In turn, META also provides IP addresses of the INSTAGRAM profile that captured the complainant's images, as stated by the complainant in the attached police report. These IP addresses are from Ivory Coast.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legitimacy for Processing

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use,

communication by transmission, dissemination or any other form of access, alignment, combination, restriction, erasure or destruction.”

The processing of images that identify or make a person identifiable constitutes the processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to the complaint, the usual legitimizing ground is consent, in general. And it is the person who uploads the personal data and the images that can be viewed without any limitation who must demonstrate that they have that consent. For this processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first subparagraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

III

Conditions for Consent

Regarding the conditions for consent, Article 7 of the GDPR provides:

- "1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.
- 2. If the consent of the data subject is given in the context of a written declaration that also relates to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form and using clear and plain language. No part of the declaration which constitutes an infringement of this Regulation shall be binding."

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3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of the processing based on consent before its withdrawal. Before giving their consent, the data subject shall be informed of this. It shall be as easy to withdraw consent as it is to give it.

4. When assessing whether consent has been given freely, the fact that, among other things, the execution of a contract, including the provision of a service, is conditional upon consent to the processing of personal data that is not necessary for the execution of that contract shall be taken into account to the greatest extent possible.

IV

Conclusion

In order to identify the person or persons who were processing the data of the complainant party subject to the complaint, preliminary investigation actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

“1. Before adopting the agreement to initiate proceedings, and once the complaint has been admitted for processing, if applicable, the Spanish Data Protection Agency may carry out preliminary investigation actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure. The Spanish Data Protection Agency shall act in any case when it is necessary to investigate processing that involves massive traffic of personal data.

2. The preliminary investigation actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed a duration of twelve months from the date of the admission agreement or from the date of the agreement by which its initiation is decided when the Spanish Data Protection Agency acts on its own initiative or as a result of the communication that has been sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

After conducting the investigations mentioned in the Facts, the following has been concluded:

The reported content has been removed.

META responded that the reported Instagram profile is located outside the European region.

The IP addresses of the Instagram profile that captured the images of the complainant party are from Ivory Coast.

The person responsible for the publication could not be identified.

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Therefore, based on the information indicated in the previous paragraphs, no evidence has been found that allows attributing responsibility for the described facts to a specific person, thus proceeding with the filing of the actions.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing of personal data consisting of the publication of the images subject to the complaint, in accordance with what has been indicated, by the Presidency of the Spanish Data Protection Agency, IT IS AGREED:

FIRST: TO FILE the present actions.

SECOND: TO NOTIFY this resolution to the complainant party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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